

Section B — Chapter 5

The High Courts and Subordinate Courts

Class 10 - Total History & Civics Solutions

Multiple Choice Questions

Question 1

How many High Courts are there in India?

1. 25
2. 30
3. 32
4. 28

Answer

25

Question 2

Out of the following Union territories, which Union territory has a High court of its own?

1. Chandigarh
2. Ladakh
3. New Delhi
4. Lakshadweep

Answer

New Delhi

Question 3

What is the maximum age in order to be qualified for appointment as a Judge in High court?

1. 62 years

2. 68 years
3. 65 years
4. 60 years

Answer

62 years

Question 4

In order to be qualified as a Judge of a High court, the individual must have held a judicial office in the territory of India or has been an advocate of a High court for atleast

1. 15 years
2. 10 years
3. 5 years
4. 12 years

Answer

10 years

Question 5

Every High court has the power of interpret the Constitution. This power is known as

1. Judicial Review
2. Constitutional Review
3. High Court Review
4. Interpretation Review

Answer

Judicial Review

Question 6

..... of High court means that the power to accept appeals against decisions of District courts, in civil as well as criminal matters.

1. Revisory jurisdiction
2. Judicial jurisdiction
3. Appellate jurisdiction
4. Advisory jurisdiction

Answer

Appellate jurisdiction

Question 7

..... Jurisdiction means that the High court can call for the record of a case which has been decided by a subordinate court:

1. Advisory
2. Appellate
3. Confirmatory
4. Revisory

Answer

Revisory

Question 8

All are empowered to issue writs.

1. High Courts
2. District courts
3. Members of Parliament
4. Ministers of the Cabinet

Answer

High Courts

Question 9

A Munsif court is authorised to deal with civil cases involving not more than

1. ₹ 15,000
2. ₹ 20,000
3. ₹ 30,000
4. ₹ 50,000

Answer

₹ 20,000

Question 10

When a judge decides Civil cases, he/she is called and when he/she decides criminal cases, he/she is called

1. Sessions Judge; District Judge
2. District Judge; Sessions Judge
3. Magistrate; District Judge
4. Magistrate; Sessions Judge

Answer

District Judge; Sessions Judge

Question 11

First class Magistrate can award imprisonment upto years and/or a fine of ₹

1. 4 years ; ₹ 20,000
2. 3 years ; ₹ 10,000
3. 3 years ; ₹ 5,000
4. 2 years ; ₹ 5,000

Answer

3 years ; ₹ 5,000

Question 12

Second class Magistrate can award imprisonment for not more than years or impose a fine of or both.

1. 1 year ; ₹ 1,000
2. 2 years; ₹ 5,000
3. 1 year; ₹ 2,000
4. 2 years; ₹ 1,000

Answer

2 years; ₹ 1,000

Question 13

Lok Adalat means

1. District Court
2. People's Court
3. High Court
4. Supreme Court

Answer

People's Court

Question 14

Suppose the autorickshaw driver, who daily takes you to school, was issued a number of traffic violation challans and had to pay a fine of five thousand rupees. He pleaded for reducing the fine but was not shown any mercy. To which court he would go to get speedy redressal of his grievance?

1. Lok Adalat
2. Sessions Court
3. High Court
4. Supreme Court

Answer

Lok Adalat

Short Answer Questions

Question 1

Name two High Courts of India whose jurisdiction extends to more than two States.

Answer

Guwahati High Court and Chandigarh High Court are the two High Courts of India whose jurisdiction extends to more than two States.

Question 2

What is the composition of a High Court?

Answer

Each High Court consists of a Chief Justice and such other Judges as the President of India may appoint from time to time.

Besides, the President has the power to appoint:

1. additional judges for a temporary period not exceeding two years.
2. an acting Judge, when a permanent Judge is temporarily absent or unable to perform his duties or is appointed to act temporarily as Chief Justice.

Question 3

Who administers the Oath of office to the High Court Judges? By whom is the Chief Justice of a High Court appointed?

Answer

A Judge of a High Court, before he enters upon his office, shall take an Oath before the Governor of the State, or some person appointed in that behalf by him.

The Chief Justice of a High Court is appointed by the President of India in consultation with the Chief Justice of the Supreme Court and the Governor of the concerned State.

Question 4

Who can remove a Judge of the High Court? On what grounds can a Judge of the High Court be removed from office?

Answer

A judge of a High Court can be removed by the president on the ground of "proved misbehaviour or incapacity" on an address of each House of Parliament. Such an address should be supported by a majority of the total membership of the House and by two-thirds of the members present and voting.

A judge of a High Court can be removed by the president on the ground of "proved misbehaviour or incapacity" on an address of each House of Parliament.

Question 5

Who decides the salaries and allowances of the Judges of the High Court?

Answer

The Chief Justice of a High Court and other Judges of the High Court are paid a monthly salary, as decided by the Parliament.

Question 6

How does the High Court protect the Fundamental Rights of individuals? What is meant by Revisory Jurisdiction of the High Courts?

Answer

The High Court enjoys original jurisdiction for the enforcement of Fundamental Rights guaranteed by the Constitution. All the High Courts are empowered to issue 'writs'. The writs that are issued are Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari. These writs are greatly instrumental in the protection of Fundamental Rights of the citizens.

Revisory Jurisdiction means that the High Court can call for the record of a case which has been decided by a subordinate court. This is done because the High Court feels that the Subordinate Court has exercised a jurisdiction not vested in it or the latter has not followed proper procedure. Therefore, the High Court can review the case and take appropriate action on it. This is known as the Revisory Jurisdiction of the High Court.

Question 7

Mention two types of Subordinate Courts in a State.

Answer

Two types of Subordinate Courts in a State are-

1. The Court of the District Judge
2. Court of Civil Judge

Question 8

What is meant by the term Civil Cases? Which type of cases are known as Criminal Cases?

Answer

Civil cases are related to land, property and money transactions, arbitration, guardianship, marriages, divorce and cases involving a Will.

Criminal cases are related to murder, robbery, theft, assault, etc.

Question 9

Which is the highest Civil Court in a District? Name the highest Criminal Court in a district.

Answer

District Judge or the Additional District Judge's Court is the highest Civil Court in a district.

Sessions Judge's or Additional Sessions Judge's Court is the highest Criminal Court in a district.

Question 10

Who is the highest Judicial Official at the district level for civil and criminal cases? How are the District Judges in a State appointed?

Answer

The District Judge is the highest Judicial Official at the district level for civil and criminal cases.

The District Judge and the Additional District Judge are appointed by the Governor in consultation with the Judges of High Court of the concerned State.

Structured Questions

Question 1

A High Court consists of a Chief Justice and other judges whose number the Parliament may fix from time to time. As regards the composition of the High Court, answer the following questions:

- (a) How are the Chief Justice and other Judges of the High Court appointed?
- (b) State three qualifications for appointment as a Judge of the High Court.
- (c) Mention two ways in which the Constitution ensures the independence and impartiality of the High Courts.

Answer

(a) The Chief Justice of a High Court is appointed by the President of India in consultation with the Chief Justice of the Supreme Court and the Governor of the concerned State.

1. Other Judges of a High Court are appointed by the President.
2. The President shall consult the Chief Justice of India, the Governor of the State and the Chief Justice of the High Court in the matter of appointment of a Judge to the High Court.

(b) According to the Constitution, a person shall be qualified for appointment as a Judge of a High Court under the following conditions:

1. He should be a citizen of India.
2. He should not be over 62 years.
3. He has held a judicial office in the territory of India for at least ten years or he has been an advocate of a High Court for at least ten years.

(c) The independence of High Courts is ensured by undertaking the following measures:

1. Full control over its procedure of work and establishment.
2. The High Court can punish a person for contempt of court if its authority is lowered.

Question 2

With reference to the powers of the High Court, briefly describe the following:

(a) What is meant by the Original Jurisdiction of the High Court? Mention two types of cases in which the High Court exercises Original Jurisdiction.

(b) Mention two types of cases in which the High Court exercises Appellate Jurisdiction.

(c) How does the High Court control the power of the Legislature and the Executive?

Answer

(a) High Courts have original jurisdiction, that is, the power to hear and decide cases at the first instance. It has original jurisdiction in the following cases:

1. Matters relating to State revenue and its collection.
2. Cases regarding wills, divorce, marriage, company law and contempt of court may be referred or brought before the High Court directly.

(b) Two types of cases in which the High Court exercises Appellate Jurisdiction are-

1. **Civil cases** — Appeals can be brought to the High Court:
 - i. in matters concerning land revenue, and
 - ii. in cases where a blatant injustice has been committed by any Tribunal. In such cases, the High Court may quash the order of the Tribunals.
2. **Criminal cases** — In criminal cases appellate jurisdiction consists of appeals:
 - i. Against the judgement of a Sessions Judge or an Additional Sessions Judge, where the sentence of imprisonment exceeds seven years.
 - ii. Against the judgements of an Assistant Sessions Judge, the Chief Metropolitan Magistrate or other Judicial Magistrates, where the sentence of imprisonment exceeds four years.

(c) The High Courts control the power of the Legislature and the Executive by the power of Judicial Review.

1. If any law, executive order or any ordinance passed by the State Legislature or any other authority infringes the Fundamental Rights or contravenes any provision of the Constitution, the High Court can declare it 'null and void'.
2. The High Court has the power of considering the Constitutional validity of any State law or executive order or ordinance.

Question 3

With reference to the powers of the High Court, answer the following questions:

- (a) How does the High Court act as a custodian of the Constitution?
- (b) How does the High Court act as a protector of Fundamental Rights?
- (c) What do we mean when we say that the High Court is a 'Court of Record'?

Answer

(a) Every High Court has the power to interpret the Constitution. This power is known as the power of Judicial Review.

1. If any law, executive order or any ordinance passed by the State Legislature or any other authority infringes the Fundamental Rights or contravenes any provision of the Constitution, the High Court can declare it 'null and void'.
2. The High Court has the power of considering the Constitutional validity of any State law or executive order or ordinance.

(b) All the High Courts enjoy original jurisdiction for the enforcement of Fundamental Rights guaranteed by the Constitution.

1. The High Courts can also issue writs for the enforcement of Fundamental Rights.
2. The writs that are issued are Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari.
3. These writs are greatly instrumental in the protection of Fundamental Rights of the citizens.

(c) The High Court is a 'Court of Record' like the Supreme Court. It means:

1. All the judgements and orders are preserved as a record to be referred to by its courts in future cases. They can be produced as precedents.
2. The law laid down by the High Court is binding on all subordinate courts in the State concerned. But it does not bind the other High Courts, although it is of great significance and can be produced in support of an argument.
3. The High Court can punish anyone who commits a contempt of its orders.

Question 4

With reference to the jurisdiction of High Courts, write short notes on:

- (a) Revisory Jurisdiction of High Courts.
- (b) Its power to issue Writs.

(c) Its power of Judicial Review.

Answer

(a) Revisory Jurisdiction means that the High Court can call for the record of a case which has been decided by a subordinate court.

1. This is done because the High Court feels that the Subordinate Court has exercised a jurisdiction not vested in it or the latter has not followed proper procedure.
2. Therefore, the High Court can review the case and take appropriate action on it. This is known as the Revisory Jurisdiction of the High Court.
3. A revisory jurisdiction is applicable in the following cases:
 - (a) injustice or an error of law apparent on the face of the record.
 - (b) violation of the principles of natural justice.
 - (c) arbitrary authority leading to wrong judgements.
 - (d) flagrant error in procedure.

(b) All the High Courts are empowered to issue 'writs'.

1. A writ is an order from a judicial authority asking a person to perform some act or refrain from performing an act.
2. The writs that are issued are Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari.
3. These writs are greatly instrumental in the protection of Fundamental Rights of the citizens.

(c) The High Court has the power of Judicial Review.

1. If any law, executive order or any ordinance passed by the State Legislature or any other authority infringes the Fundamental Rights or contravenes any provision of the Constitution, the High Court can declare it 'null and void'.
2. The High Court may withdraw a constitutional case from a Subordinate Court and deal with it or send it back with its directions.
3. The 42nd Amendment Act, 1976, introduced provisions, where the power of the High Court to judge the constitutionality of a State law was withdrawn during the Emergency.
4. But with the repeal of certain parts of the 42nd Amendment, the High Courts regained their powers of considering the Constitutional validity of any State law or executive order or ordinance.

Picture Study

Question 1

Study the picture and answer the following questions:



- (a) Identify the court whose logo is given in the picture on the right. How do these courts function?
- (b) What are the advantages of resolution of disputes through such courts?
- (c) What is the scope of a Lok Adalat in India?

Answer

(a) The given picture shows the logo of Lok Adalats.

1. Lok Adalat means 'People's Court'.
2. It is an alternative dispute redressal mechanism where disputes/cases pending in the court of law or at pre-litigation stage are settled amicably.
3. There is no court fee payable when a matter is filed in a Lok Adalat.
4. The Legal Services Authorities Act, (1987) provides that State or district authorities shall organise Lok Adalats from time to time.
5. All decisions of the Lok Adalats shall be deemed to be decrees of a Civil Court and shall be binding on the parties to the dispute.
6. Main condition of the Lok Adalat is that both parties in a dispute should agree for a settlement.
7. Voluntary organisations organise such courts in places like factories, farms, commercial complexes and neighbourhood of the litigants to settle disputes in a spirit of harmony and compromise.
8. Cases are settled informally and cordially with the involvement of conflicting parties.
9. Lok Adalats also resolve cases which have not yet gone to any court.

(b) The advantages of resolution of disputes through Lok Adalats are-

1. Lok Adalats play important role in the settlement of family feuds, disputes between the neighbours and minor cases of assault and injury by settling the disputes through compromise. Since the Lok Adalats work in the spirit of compromise and understanding, both the parties feel satisfied.

2. Lok Adalats deliver fast and inexpensive justice. Any person can move Lok Adalat by an application on a plain paper or using the format available with Legal Service Authorities and expect speedy justice.
3. The Lok Adalats reduce the workload of other courts enabling them to deal with more serious matters. This reduces delays in higher courts.
4. Lok Adalats promote social justice by providing legal aid to weaker sections of society.

(c) The system of Lok Adalats has now become so popular that various government departments like the Telephone Department, Traffic and the Electricity Boards have begun to hold Lok Adalats solving hundreds of cases in a single day.

1. It is the need of the hour that Lok Adalats are organised more frequently and their jurisdiction is expanded.
2. There are lakhs of cases pending in different courts all over India.
3. These courts can play important role in the settlement of family feuds, disputes between the neighbours and minor cases of assault and injury.
4. Weaker sections of society cannot afford the delay or the costs involved in court procedures.
5. The institution of Lok Adalat tends to promote social justice as in Delhi where permanent Lok Adalats have already been set up for settlement of all pending disputes concerning Delhi Development Authority, Mahanagar Telephone Nigam, Municipal Corporation and National Insurance Co. Ltd.